

... , the challenged action or tactic is not withdrawn or appropriately corrected.” (Code Civ. Proc., § 128.5, subd. (f)(1)(B).)

When an attorney or unrepresented party submits to the court a motion or other document, they certify to the court (1) the document is not presented primarily for an improper purposes, (2) the contentions therein are warranted by existing law, (3) the factual contentions have or are likely to have evidentiary support, and (4) the denials of factual contentions are warranted on the evidence or reasonably based on a lack of information or belief. (Code Civ. Proc., § 128.7, subd. (b).) “If, after notice and a reasonable opportunity to respond, the court determines that [one of the above four bases] has been violated, the court may[] . . . impose an appropriate sanction upon the attorneys, law firms, or parties . . . responsible for the violation.” (*Id.* subd. (c).) Sanctions under Code of Civil Procedure section 128.7 require compliance with the Safe Harbor Provision, which provides a motion for sanctions “shall not be filed with or presented to the court unless, within 21 days after service of the motion, or any other period as the court may prescribe, the challenged paper, claim, defense, contention, allegation, or denial is not withdrawn or appropriately corrected.” (Code Civ. Proc., § 128.7, subd. (c)(1).)

Here, while plaintiff states that the motion was served on defendants on April 8, 2026, plaintiff presents no evidence he served the motion on April 8, 2026. Accordingly, there is insufficient evidence of compliance with the safe harbor provisions outlined in Code of Civil Procedure sections 128.5(f)(1)(B) and 128.7(c)(1). Due to this procedural deficiency, the motion is denied.

Even if plaintiff had shown compliance with the safe harbor provisions, the motion would still be denied. It cannot be said that the opposition to the motion to strike filed February 25, 2026 is totally and completely without merit or evidentiary support or was filed for the sole purpose of harassing an opposing party or another improper purpose.

Based on the foregoing, the motion is denied.

Motion to Consolidate

The motion to consolidate is dropped from calendar as no moving papers were filed with the court.

18. S-CV-0055656 Alizadeh, Kobra v. Barrett Daffin Frappier Treder & Weiss

Moving Party is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendant Wells Fargo, N.A.’s Motion for Judgment on the Pleadings

Defendant Wells Fargo, N.A.’s request for judicial notice is granted.

Defendant Wells Fargo, N.A. moves for judgment on the pleadings. Plaintiffs oppose the motion and request to file an amended complaint.

“A motion for judgment on the pleadings is the functional equivalent of a general demurrer.” (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) As such, the grounds for the motion for judgment on the pleadings must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) Further, the court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court may take judicial notice of a defendant’s uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485; *see also Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital LLC v. Cobb* (2019) 7 Cal.5th 156.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Spencer*, 88 Cal.App.5th at 861.)

Defendant Wells Fargo, N.A. brings the motion on the basis the complaint fails to state facts sufficient to constitute a cause of action. (Code Civ. Proc. § 438(c)(1)(B)(ii).) (Mot. J. Pleadings at 2.) Plaintiffs agree their second cause of action under the HBOR is defective, and indicate they will not proceed on that claim. Plaintiffs request leave to amend to allege a variety of additional claims, including wrongful foreclosure, negligent loan servicing, negligent misrepresentation, promissory estoppel, and unfair business practices.

Defendant’s motion is granted. (Code Civ. Proc., §§ 473, (a)(1), 576.) The motion is granted without leave to amend as to the second cause of action under the HBOR. The motion is granted with leave to amend as to the first and third causes of action. Plaintiffs’ implied request to amend to add additional causes of action beyond the scope of defendant’s motion is denied without prejudice to plaintiffs bringing a noticed motion for leave to file an amended complaint.

Plaintiffs shall file and serve the amended complaint **on or before July 6, 2026**.

19. S-CV-0055661 Ronketty, David v. Mitchell, Dia

The moving party is advised the notice of a motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Plaintiff’s motion to strike portions of defendant’s answer

Plaintiff moves to strike portions of defendant’s answer. Defendant did not file a response.

Meet and Confer

Code of Civil Procedure section 435.5 requires that “[Before filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person, by telephone,